

02:00 PM **LINE 6**

24-CIV-08329

JONATHAN YUN VS. TOYOTA MOTOR SALES, U.S.A., INC.

JONATHAN YUN
TOYOTA MOTOR SALES, U.S.A., INC.

ELLIOT CONN
SEAN D. BEATTY

Plaintiff's Motion to Compel Toyota Motor Sales, U.S.A., Inc.'s Further Responses to Plaintiff's First Set of Special Interrogatories

TENTATIVE RULING:

Plaintiff Jonathan Yun's "Motion to Compel Toyota Motor Sales U.S.A., Inc.'s Further Responses to Plaintiff's First Set of Special Interrogatories, Nos. 15, 21-24," filed on February 6, 2026, is **GRANTED**.

Toyota Motor Sales U.S.A., Inc.'s request for monetary sanctions against plaintiff is **DENIED**.

As to Special Interrogatory Nos. 15 and 22-24 (which ask: "What are YOUR policies for repurchasing vehicles in accordance with the SONG-BEVERLY ACT"; "What are your policies regarding YOUR AUTHORIZED DEALERSHIPS selling vehicles that have sustained collision damage as 'new'?" and "What are YOUR policies regarding disclosing collision damage and body repairs on vehicles that have not been registered?" and "What are YOUR policies for repurchasing vehicles that have sustained pre-sale collision damage that are sold as 'new'?"), the Motion is **GRANTED-in-part**.

In response to each of these interrogatories, defendant asserts a number of objections, including privilege and work product protection. Toyota's response to Interrogatory No. 15 consists of a terse response, followed by several objections. Defendant's responses to Interrogatory Nos. 22-24 consist solely of objections.

In its Opposition papers, however, Toyota argues that it has already produced documents that contain information responsive to these interrogatories. Toyota appears to conflate producing documents with serving a proper interrogatory response. Toyota's Opposition argues that on February 12, 2026, it produced "supplemental confidential documents related to [Tyota's] policies and procedures for Lemon Law case management handling process flow chart and its warranty policy and procedures manual, subject to a stipulated protective order." (See Toyota's Separate Statement; Kriston Guillot Decl., ¶¶ 19-23.) Toyota's Opposition further explains that it needed to await entry of a Stipulated Protective Order before it could produce the above-referenced documents, and that it therefore did not produce the above-referenced "policy" documents until February 12, 2026. Given its document production, Toyota argues that no further response to these interrogatories is necessary.

Toyota contends that

22. On June 2, 2026, before drafting this opposition, defense counsel attempted to confer with plaintiff counsel on whether Plaintiff intended to maintain the motions to compel notwithstanding receiving further responses and the production. But Plaintiff counsel has not responded or withdrawn the motions to compel ...

23. Substantively, [Toyota] has produced all documents in its possession related to the subject vehicle, its distribution and transportation, relevant policies, investigations, and the service visits.

(June 4, 2026 Kriston Guillot Decl., ¶¶ 22-23.)

Toyota's responses to Special Interrogatories Nos. 15 and 22-24 are incomplete. Because Toyota has opted to produce documents containing responsive information pursuant to Code of Civil Procedure, section 2030.230, its interrogatory responses must reference Section 2030.230 and identify the documents with specificity, generally by Bates number. Section 2030.230, states, in pertinent part:

If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. ***This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained*** ...

(Code Civ. Proc., § 2030.230, emphasis added.)

Toyota's briefing suggests that the parties agreed that a document production would render further responses to these interrogatories moot or unnecessary, but defendant has not clearly identified any such agreement.

Within fifteen (15) days of notice of entry of this Order, Toyota shall serve further verified, code-compliant responses to Special Interrogatories Nos. 15 and 22-24.

As to Special Interrogatory No. 21 (stating: "IDENTIFY all transit companies that transported the SUBJECT VEHICLE"), the Motion is **GRANTED**. Toyota's response consists solely of objections based on attorney-client privilege, work product/consulting expert privilege/protection, and relevance. Toyota also argues that Special Interrogatory No. 14 asked Toyota to "IDENTIFY the transit company that delivered the SUBJECT VEHICLE to the selling

dealership,” and that in response to No. 14, Toyota directed plaintiff to documents that it produced pursuant to Section 2030.230.

Toyota’s response to Special Interrogatory No. 21 is incomplete. This interrogatory asks Toyota to identify “all transit companies that transported the SUBJECT VEHICLE,” which is broader than Special Interrogatory No. 14. Further, as explained above, if Toyota intends to respond to Special Interrogatory No. 21 by producing documents pursuant to Section 2030.230, its response must reference that code section, and identify the produced documents by Bates number.

Within fifteen (15) days of notice of entry of this Order, Toyota shall serve a further verified, code-compliant response to Special Interrogatory No. 21.

Because plaintiff’s Motion is being granted, Toyota’s request for monetary sanctions against plaintiff is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 7**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Second Amended Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions Set 5

TENTATIVE RULING:

Plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

In its discretion, the court will consider the motion, and the reply, each of which was filed a day late. (Code Civ. Proc., § 1005, subd. (b).) Defendant waived objections to the tardiness of the motion by timely filing an opposition. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929 ["It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion."].) Plaintiff is admonished to comply with the California Rules of Court.

The hearing of plaintiff Kevin Ramos' *Second Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions Set 5* (Motion) is **CONTINUED to August 12, 2026 at 2:00 p.m.**

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered injury and damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Defendant responded to plaintiff's Requests for Admission Set #5 on December 16, 2025. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of the instant "Second Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions [sic] Set 5" (Motion) on January 8, 2026. Plaintiff filed an amended version of that initial motion on January 12, 2026. However, the court *sua sponte* ordered the motion concerning the Requests for Admission (RFAs) Set No. 5 off-calendar, and scheduled an IDC instead. (Order, January 16,